

**FACULTY OF LAW
WESTERN UNIVERSITY
FINAL EXAMINATION**

Constitutional Law 5110 003

DATE: Wednesday, April 26, 2017
TIME: 1:00 p.m. – 4:00 p.m.
LOCATION: Room 38
EXAMINER: Professor Kate Glover

This exam consists of 7 pages (including this page). Please check that you have all of the pages, and alert the proctor immediately if you do not.

Instructions:

1. This is a limited open book exam. The following materials are permitted in the exam room: a student's own notes, including lecture outlines, and the required text for the course. NOT permitted: commercial summaries, texts or copies of texts other than the required text for the course, and lecture recordings.
2. The total time for the examination is 3 hours. The exam is worth 50% of your final grade in this course and consists of four questions, some with multiple parts. The value and approximate writing time of each question are indicated.
3. Please read each question carefully and answer the question asked. In Parts One A, One B and Two, remember to fully explain your reasoning, to cite authorities to support your positions, and to write clearly.
4. If you are writing by hand, please write legibly on every other line and on one side of the page only. Write the course name, instructor's name, today's date and your 4-digit exam number on the cover of each booklet that you use. Do **not** put your name or student number on your exam; use only your 4-digit exam number to identify your work. Number all of the exam booklets that you used (i.e. 1 of 2, 2 of 2, etc.) and return any unused booklets.
5. Use only your 4-digit exam number and **not** your name or student number. Do not identify yourself in your answers or on your exam booklets in any other way. **Write your 4-digit number at the top of this question paper** and HAND IT IN before you leave the room at the end of the exam.
6. You are not permitted to leave the exam room during the last 10 minutes of the exam.
7. You must stop writing at the designated time. A notation will be made on your question paper if you fail to do so and will be taken into consideration when grading your exam.
8. If writing by computer, you are responsible for ensuring that your exam has been uploaded BEFORE you leave the examination room. After a successful exam submission, you will receive a confirmation email from ExamSoft; we recommend that you save this email until after final grades have been posted. You can also log into your account at <http://examsoft.com/westernulaw> to see the exams for which you have submitted answers.

**STOP! DO NOT READ THE NEXT PAGE
UNTIL INSTRUCTED TO DO SO BY THE PROCTOR**

PART ONE: HYPOTHETICAL FACT ANALYSIS
(76 marks total; suggested time 2 hours 16 minutes)

Consider the following facts:

Rory Gilmore is a social activist, transit expert, and philanthropist who has recently relocated to London, Ontario. She is currently investing in the development of electric-powered, self-driving vehicles that provide affordable, accessible, and environmentally-responsible public transit in urban centres around the world. Thanks to Rory's advocacy and financial support, self-driving electric-powered buses (the "EasyMetre G-10" model) are already being used successfully in Helsinki, Las Vegas, and Darwin, Australia.

The EasyMetre G-10 bus operates based on data gathered by ninety sensors that are positioned all around the vehicle. These sensors transmit data to the bus's localization systems, the obstacle detection and avoidance systems, and the navigation, planning and control systems. These systems then work together to operate the vehicle. The EasyMetre also has a built-in override system that allows a human driver to override the automatic-driving mode and drive the bus. The override system is customizable so that each city that uses the buses can determine the circumstances in which human drivers can trigger the override system.

The federal government of Canada and the governments of each province and territory have agreed to conduct a joint public transit project that will introduce EasyMetre G-10 buses into transit systems across the country. The project is scheduled to start in June 2017 and Rory has moved to London to monitor the project's progress. London is home to the Institute for the Study of Self-Driving Vehicles. The Institute, which conducts research on all aspects of self-driving vehicles, is located on the campus of the University of Western London. The Institute is part of the University, but receives most of its funding from the Ontario government's Ministry of Transport. It also receives some funding from the University and some from private corporate donors. The Ministry of Transport appoints ten members of the Institute's Board of Directors, the University appoints one member, and the mayor of London appoints one member. The Board makes all decisions regarding the governance and operations of the Institute. These decisions range from setting the Institute's research agenda to deciding on researchers' salaries to choosing the type of coffee to keep in the Institute's kitchen.

In anticipation of the Canadian pilot project for EasyMetre buses, Parliament put out a call for expert input. Several expert reports were submitted to Parliament by researchers at the Institute:

- Professor Huntzberger submitted a report establishing that in rainy or snowy conditions, 90% of all vehicle collisions are caused by human error. Her report also established that collisions occurring in snowy, rainy, or icy conditions usually have more serious consequences, including an increased risk of death, for drivers and passengers in all vehicles involved than in collisions that occur under normal road conditions. As a result, Professor Hunsberger recommended that the override system in Canadian EasyMetre buses not be available whenever the bus is driving in snowy, wet or icy conditions or when there is a risk of snowy, wet or icy conditions.

- Professor Medina submitted a report indicating that during the period of his research (from May 2015 to September 2015), no EasyMetre bus was involved in a collision in Helsinki, Darwin or Las Vegas. Further, Professor Medina reported that during the research period, the override systems of EasyMetre buses were only triggered twice: first, when a passenger in Helsinki went into labour while on board and the override system was triggered to take the bus off its pre-programmed route and drive to the hospital; and second, when two passengers on a Las Vegas bus got into a physical fight during a crowded rush-hour commute and the bus was pulled over so that other passengers could escape to safety.
- Professor Mariano submitted a report establishing that the EasyMetre buses in Helsinki, Las Vegas, and Darwin will, in the long term, contribute to reductions in greenhouse gas emissions. Her research also showed that as customizations and exceptions are built into the human override system in the EasyMetre buses, these positive effects on greenhouse gas emissions are diminished.
- Professor Rygalski submitted a report showing that 75% of all passengers on EasyMetre buses feel safest when a human driver can override the automatic driving mode of the bus to respond to unforeseen circumstances, such as hazards on the road, sudden changes in weather, or emergency circumstances onboard the bus. This research also found a heightened risk of violence or other bad behavior on self-driving buses compared to buses with human drivers.

In light of this evidence and in order to ensure the safety of the public, the safety of the transit system, and the environmental integrity of public transit in Canada, Parliament enacted the *Self-Driving Vehicle Regulation Act*, SC 2016, c 5110 (“*Act*”). Some of its key provisions provide as follows:

The Self-Driving Vehicle Regulation Act

WHEREAS self-driving vehicles are an innovative development in transportation;

WHEREAS self-driving vehicles may assist local governments to provide affordable and accessible public transit to the public;

WHEREAS self-driving vehicles may assist Canada in meeting its international environmental obligations;

WHEREAS public safety is of utmost importance;

Part I: General

[...]

3. In this Act, ‘inclement weather’ includes weather that constitutes or creates wet, snowy, or icy driving conditions.

[...]

Part II: Self-Driving Public Transit Vehicles

9. Self-driving public transit vehicles must be equipped with an override system that allows a human driver to assume full control of the vehicle, including the steering, speed, and braking features of the vehicle.

10. Subject to section 11, it must always be possible to trigger the override system on a self-driving public transit vehicle.

11. Notwithstanding anything else in this Act, it must never be possible to trigger the override system on a self-driving public transit vehicle operating in inclement weather, or when there is a risk of inclement weather.

Part III: Institute for the Study of Self-Driving Safety

12. The Institute for the Study of Self-Driving Vehicles is hereby designated to regulate all aspects of safety pertaining to self-driving vehicles in Canada.

13. The Minister of Justice shall have a permanent seat and vote on the Board of Directors of the Institute.

14. The Institute's Board of Directors is authorized to enact policies, procedures, and rules and make decisions as needed to carry out its mandate under this *Act*.

15. All policies, procedures, rules, and decisions of the Institute can be overridden by unanimous vote of Cabinet.

16. The Institute is entitled to apply to Parliament for funding. Such applications will not be unreasonably denied.

[...]

The *Act* as a whole creates a complex regulatory scheme governing the development, sale, registration, and environmental standards of self-driving vehicles. It is designed to complement provincial regulations of public transit, the environment, and highway control. While Parliament considered a range of alternatives, particularly regarding the override system, it concluded that the current version of the *Act* best addresses all of the relevant interests.

In June 2016, in furtherance of its mandate to ensure the safety of the self-driving vehicles, the Institute conducted a study that found that public transit passengers are happier and less prone to anger during their commute when they are provided with 'neutral entertainment'. According to the study, 'neutral entertainment' is entertainment that is not upsetting to any sector of society. In response to the study, the Institute enacted a "Neutral Entertainment Policy". The Policy provides that all self-driving public transit vehicles must play music at all times and that all such music must first be approved by the Institute's Entertainment Committee to determine if it is "neutral". The Committee has denied many approval requests, including requests to play songs that address issues related to sex, religion, terrorism, war, natural disasters, abortion, politics, and divorce.

In light of the above facts, please answer the following questions.

Question One A (36 marks; suggested time 65 minutes)

Rory is concerned with Parliament's legislative response to self-driving public transit. She wants to ensure that the self-driving public transit vehicles are as safe as possible for passengers. Accordingly, she is considering a challenge to the *Self-Driving Vehicle Regulation Act*, SC 2016, c 5110. She thinks that section 11 of the *Act* puts passengers of the EasyMetre buses at risk and therefore imposes an unreasonable limit on the section 7 rights of the passengers. Do you agree? Fully explain your reasoning.

For the purposes of this question, do not address any issue related to the application of the *Charter*.

Question One B (28 marks, suggested time 50 minutes)

Rory is also considering a constitutional challenge of the Institute's *Neutral Entertainment Policy*. She believes that the *Charter* applies to the Institute because it falls within the scope of section 32(1) of the *Charter*. Do you agree? Why or why not? Fully explain your reasoning.

For the purposes of this question, do not address any issue related to whether the Policy violates the *Charter* or whether such a violation could be justified under section 1.

Question One C (12 marks, suggested time 21 minutes)

Please choose any **4 (FOUR)** of the following **6 (SIX)** questions. For each question you choose, write the answer that you think is most correct in ExamSoft or in your exam booklet. This question paper will NOT be given to the Examiner. Do **not** explain or justify your answers. If you answer more than 4 questions, only the first four responses will be counted. **(12 marks total)**

- C1. Rory believes she would have a strong argument that the *Self-Driving Vehicle Regulation Act* is beyond Parliament's legislative authority. As she is new to the country, she asks you to explain the law of the division of powers in Canada. Which of the following statement(s) could you accurately report to Rory?
- a. The *Self-Driving Vehicle Regulation Act* is part of a cooperative scheme between the federal and provincial governments. It is thus protected by the principle of cooperative federalism and can never be found to be unconstitutional on division of powers grounds.
 - b. If the *Self-Driving Vehicle Regulation Act* contains a prohibition and a penalty, that alone is sufficient to uphold the *Act* as an exercise of Parliament's criminal law purpose.
 - c. If the pith and substance of Parliament's *Self-Driving Vehicle Regulation Act* falls within provincial jurisdiction, the *Act* as a whole can be saved under the ancillary powers doctrine.
 - d. None of the above.

- C2. Rory wants to invest in organizations that develop self-driving vehicles. Accordingly, she is wondering whether the *Charter* protects the rights of corporations. What could you accurately tell her?
- a. As a general rule, corporations enjoy a right to religious freedom. Organizations constituted primarily for religious purposes have additional protections.
 - b. Corporations can rely on section 2(a) of the *Charter* as a defence to a criminal charge.
 - c. Corporations are not protected by section 2(b) of the *Charter*.
 - d. Corporations do not enjoy the right to life, as guaranteed in section 7 of the *Charter*. However, corporations do enjoy the right to liberty and security of the person under section 7.
- C3. Rory wonders if she should lobby for a constitutional amendment that would add “public transit” to the list of provincial legislative powers set out in section 92 of the *Constitution Act, 1867*. She asks you whether such an amendment is possible. What advice could you accurately provide about the law of constitutional amendment?
- a. Lobbying would be a waste of time because sections 91 and 92 of the *Constitution Act, 1867* cannot be amended.
 - b. Lobbying would require a lot of work because the general amending procedure requires the unanimous consent of Parliament, the provincial legislatures and the governments of the territories.
 - c. Parliament could implement this amendment to section 92 unilaterally under section 44 of the *Constitution Act, 1982*.
 - d. None of the above.
- C4. TRUE or FALSE: In order to be successful in a section 15(1) claim, Rory must establish either that the Neutral Expression Policy has a negative effect on human dignity or that the Policy perpetuates prejudicial stereotypes.
- C5. TRUE or FALSE: Section 33 of the *Charter* would not be operative if inserted into the *Self-Driving Regulatory Act* because section 33 cannot be used in any way that would put the public’s life, liberty or security of the person at risk.
- C6. Rory is outraged by the censoring activities of the Institute’s Expression Committee. She asks whether the Committee’s activity could be consistent with the *Charter*. Which of the following could you accurately tell Rory?
- a. The *Charter* is to be interpreted purposively and, as a result, the outcome of the Court’s analysis of Rory’s *Charter* challenge would depend on Parliament’s purpose when enacting the *Self-Driving Vehicle Regulation Act*.

- b. When a law's purpose is to restrict the content of expression by identifying particular messages that cannot be communicated, it necessarily limits the guarantee of free expression.
- c. The freedom of expression guarantee in section 2(b) of the *Charter* is quite narrow – it only protects activities that convey or attempt to convey a message.
- d. As public transit is a commercial endeavor and section 2(b) does not protect commercial speech, a challenge under section 2(b) could not be successful in this case.

PART TWO: ESSAY
(24 marks, suggested time 44 minutes)

Answer either Option Two A or Two B. Do not answer both.

Option Two A

“Through judicial interpretation, the Constitution of Canada has come to advantage governments and powerful actors at the expense of marginalized and disadvantaged individuals and groups”.

To what extent do you agree with the above statement? Please support your answer with reference to materials we have studied in both terms of this course, including at least one case or example related to section 35(1) of the *Constitution Act, 1982*.

OR

Option Two B

Much of Canada's constitutional law deals with disputes over competing interests, principles and values. The courts have generally responded by developing frameworks intended to balance the competing positions. How would you rate the Supreme Court of Canada's responses to these disputes? Does the law as it stands strike the appropriate balance?

Please support your answer with reference to materials we have studied in both terms of this course, including at least one case or example related to section 35(1) of the *Constitution Act, 1982*.

– END OF EXAMINATION –

HAVE A GREAT SUMMER!!

IMPORTANT!

**Write your 4-DIGIT EXAM NUMBER on the first page and
HAND IN this question paper before you leave the room**